

The Claremont City Council held a meeting on Wednesday, December 13, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:32 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett said Ordinance 559 will be removed from the agenda as it is not ready.

REPORT OF THE SECRETARY

A motion was made by Mr. Damren and seconded by Mr. Raymond to accept the minutes of the July 12, 2017, City Council meeting.

Ms. Towle abstained as she was not at that meeting.

Voice vote: motion carried 8-0 with 1 abstain: Ms. Towle.

A motion was made by Mr. Simonds and seconded by Ms. Towle to accept the minutes of the November 8, 2017, City Council meeting.

Mayor Lovett said on page 10, 4th paragraph from the bottom, "She thinks flood insurance should be conditional." She said it should be, "She thinks flood insurance should not be conditional."

Voice vote: motion carried 8-0 with Ms. Kier abstaining as she was not at that meeting.

A motion was made by Mr. Damren and seconded by Mr. Raymond to accept the minutes of the November 9, 2017, City Council meeting.

Mr. Simonds, Ms. Kier and Mr. Koloski said they were not at the meeting, but were listed in the minutes as being present.

Voice vote: motion carried 7-0 with 2 abstentions: Ms. Kier and Mr. Simonds.

A motion was made by Mr. Raymond and seconded by Ms. Towle to accept the minutes of the November 14, 2017, City Council meeting.

Voice vote: motion carried 9-0.

A motion was made by Ms. Kier and seconded by Mr. Pope to accept the minutes of the November 28, 2017, City Council meeting.

Voice vote: motion carried 9-0.

A motion was made by Ms. Towle and seconded by Mr. Raymond to accept the minutes of the November 29, 2017, City Council meeting.

Voice vote: motion carried 9-0.

MAYOR'S NOTES

Mayor Lovett said First Night events will be held December 31st. Button will be for sale for \$1 and will be used for entry into the activities.

Mr. McNutt said in addition to the normal fireworks display to be held at Arrowhead, there will be fireworks at midnight for the Common Man.

Mayor Lovett said regarding the Wild Goose Boat Launch, that Newport and the County Commissioners have passed resolutions in support. There will be a meeting in Concord tomorrow; Mr. Raymond and Mayor Lovett will attend.

Mayor Lovett thanked the departing Councilors: Keith Raymond, John Simonds, Bruce Temple and Carolyn Towle, for all their work and she presented them with plaques.

The Councilors expressed their appreciation.

Mr. Koloski said his family would host the annual free dinner at its restaurant, Time-out Americana Grill, on Tuesday, December 19, 6 p.m.

Mr. Koloski said the local Girl Scouts had collected a lot of items and delivered them to him today. They will be distributed throughout the community.

CITY MANAGER'S REPORT

- **Fire Chief Retirement**

- Fire Chief Richard Bergeron will retire on December 31, 2017, after serving more than 40 years with the Claremont Fire Department. Deputy Chief Bryan Burr will become the next Chief effective December 31, 2017.

- **Opioid Situation Report**

- Dartmouth medical program had been operating the SSP (needle exchange) at the Claremont Soup Kitchen at 51 Central Street, but operations at that location are currently on hold because it is located within a drugfree school zone, which violates state law. City staff as well as community partners are working to find a viable, long-term location for Project 439 and to better understand how SSPs may operate in the City.
- For the month of September 2017, the Claremont Fire Department and Golden Cross responded to (4) four calls related to opioid overdoses. The data does not show the opioid problem in Claremont and Sullivan County to be any more severe than in other areas. Currently the larger issue facing law enforcement in Claremont is the use of "bath salts."

- **Emergency Warming Shelters**

- Southwestern Community Services (SCS) has a short-term emergency shelter to assist families and individuals who have a housing crisis. The other closest places would be the Greater Falls warming shelter in Walpole (singles only), and then Hundred Nights in Keene.

- **Primex Safety Audits**

- Primex representatives join us for our Joint Loss Management Committee (JLMC) meetings. They also audit us annually with the Prime 3 initiatives to ensure, as part of our Committee, that we inspect each department. We were officially audited by the NH DOL on 9/18/2015 and included all departments. We were given a punch list of items that needed to be addressed, once we finished they were back and approved our changes on 1/29/2016.

- **Household Hazardous Waste Collection**

- Through an agreement with Upper Valley Lake Sunapee Regional Planning Commission, the City of Claremont will be hosting a collection day for disposal of hazardous materials

on June 16, 2018, at the Claremont Highway Garage at 8 Grandview Street, 9 a.m. to 12 noon.

Ms. Towle asked what the process was to determine that the Fire Deputy Chief would move up to Chief. Mr. McNutt gave a brief explanation saying that Bryan Burr is fully qualified and has the full confidence of the current Chief.

Mayor Lovett asked about a timeline for the needle exchange. She hopes we find a solution sooner rather than later.

Ms. Towle said citizens have asked her what the solution is when they find needles in the community. Mr. McNutt said the Planning and Development Department is working on the zoning legalities and Valley Regional Hospital is also working on this. He hopes to have more information in January. Mayor Lovett said this is a public health priority.

Mr. Simonds, in addition to being a Councilor, is also the Sullivan County Sheriff, said the lack of a needle exchange program is not the reason people are finding needles on the streets. They will be found whether we have a needle exchange or not.

Mayor Lovett said another component to the needle exchange program is that the medical students want to help stop the spread of HIV, hepatitis, etc.

Mr. McNutt said the Police Department has a sharps container available if anyone has needles they need to dispose of. He will inventory all locations that have sharps containers and put that information on the City's website.

Mr. Koloski asked if Narcan is still being distributed at the Claremont Soup Kitchen. Mr. McNutt said that was unknown and he would have to verify.

Mr. Temple said his concern was not about the needle exchange, but the location. He hopes the City moves forward with finding a different location. He said he heard from someone that was concerned about the availability of Narcan at the Claremont Savings Bank Community Center (CSBCC). They had gotten that information from social media.

Police Chief Mark Chase said his officers are not trained in the use of Narcan, but Fire Department personnel are.

Mr. Koloski said he has to go through training every year. He asked what the policy is for training first responders.

Mr. Simonds said the Sullivan County Public Health Network does training around the county. The Sheriff's office is certified.

Mayor Lovett said in January or February there needs to be a comprehensive look at how the City is going to address this.

Mr. Damren would like to see what City facilities would be used for Narcan training beforehand.

Mr. Pope said he has been hearing there would be state resources available and he would like an update on that.

Mr. McNutt reassured the public there is no Narcan training at the CSBCC. It is happening at the Hope for Recovery Center through the NH Public Health Network. Mayor Lovett said the confusion is that they sometimes refer to themselves as a community center.

APPOINTMENT TO BOARDS AND COMMITTEES

Fiske Free Library Board of Trustees

A motion was made by Mr. Pope and seconded by Mr. Raymond to appoint Cindi Cleveland to seat A-1 of the Fiske Free Library Board of Trustees.

Voice vote: motion carried 9-0.

A motion was made by Mr. Raymond and seconded by Mr. Damren to appoint Robert Arcand to seat 3 of the Fiske Free Library Board of Trustees.

Voice vote: motion carried 9-0.

Parks and Recreation Commission

A motion was made by Mr. Pope and seconded by Ms. Towle to appoint Eric Zengota to Alternate Seat 2-Ward II of the Parks and Recreation Commission.

Voice vote: motion carried 9-0.

Zoning Board of Adjustment

A motion was made by Ms. Kier and seconded by Mr. Simonds to appoint Tracy Pope to Seat 4 of the Zoning Board of Adjustment.

Mr. Pope recused himself (Tracy is his wife) and stepped away from the Council table.

Voice vote: motion carried 8-0.

At 7:15 p.m. Mr. Pope returned to the Council table.

A motion was made by Mr. Simonds and seconded by Ms. Kier to appoint Carolyn Towle to Seat A1 of the Zoning Board of Adjustment

Voice vote: motion carried 9-0.

CITIZEN'S FORUM

Rebecca MacKenzie, Ward 2, said she is an environmental student of global warming science and she is also a social scientist seeing the increase of mental illness related to natural disasters and our changing climate. There is a need to transition to renewable sources of energy that are sustainable to reduce global warming. She belongs to a small book group called the Action Collaborative for Transition to Sustainability Now. They have been given a New England Grass Roots Environment Fund Grant to pursue increasing solar energy in our region. She can be reached at 504-2851 or reb178@myfairpoint.net.

OLD BUSINESS

None

NEW BUSINESS

Ascertainment Hearing for Cable Franchise Renewal – Public Hearing

Mayor Lovett said the City is seeking input from the citizens of Claremont (both Comcast users as well as any non-users) who wish to give input on future cable related needs for Claremont as well as how Comcast has performed, access to cable services, customer service, frequency of service breakdown, etc. She said this is for television only, not cable or phone.

Mayor Lovett opened the public hearing.

Bernie Folta, Ward 3, said he is not a Comcast subscriber. He said the content is what you watch and the technology is how you watch. He talked about the Claremont Cable Franchise Advisory Subcommittee that was formed in 2014.

Mr. Koloski asked why School Board meeting “drop out.” He said Comcast said it was not their issue.

Keith Druhl, Executive Director, CCTV (Claremont Community Television), said they are working with Comcast. At around 9 p.m. and 10 p.m., channel 8 has been dropping out. He said the public access channels are in standard definition, while the commercial channels are in high definition. He said CCTV is poised to go high definition. The School Board meetings are rebroadcast at other times and they are available on the CCTV website. He suggested putting on the website that these meetings are available online.

Mayor Lovett said the takeaway is that anything that Comcast can do to improve the two public access station would be helpful.

Mr. Druhl asked to add into the contract how quickly they should respond. He suggested 48 hours for public access.

Mr. Pope had heard they plan to discontinue CCTV channel 8; he would like an answer to that.

Mayor Lovett closed the public hearing.

Shugah Valley Snow Riders Annual Permission

Roger Wright, Ward 3 resident and President of the Shugah Valley Snow Riders, said they maintain over 70 miles of trails (about 45 miles are within Claremont). They spend over \$17,000 a year which comes from fundraisers and snowmobile registrations.

A motion was made by Mr. Raymond and seconded by Mr. Damren that the Claremont City Council hereby authorizes the city manager, or his designees, to take such actions as may be necessary to issue a written Snowmobile Trail Permission, pursuant to RSA 215-C:8, to Shugah Valley Snow Riders, Inc. for a period of one year. This Permission is for use of designated City-owned land and class VI highways, which list is to be included with the Use Permission Form and is subject to all City and state rules and regulations pertaining to use of snowmobiles on public property. This Permission is granted subject to the following condition:

- 1. The City may close one or more trails on either City-owned land or class VI highways to snowmobile use as may be required for reasons including but not limited to trail conditions, maintenance and public safety.**

Voice vote: motion carried 9-0.

Request to Name Pedestrian Bridge after Guy Santagate – Public Hearing

Mr. Simonds gave his personal history of being a police officer in Claremont. He said he has a tremendous amount of respect for former City Manager Guy Santagate and the work he did. Mr. Simonds read his proposal to name the pedestrian bridge, which spans the Sugar River from the Claremont Visitors Center to the recently redeveloped Monadnock Mills District, for former City Manager, Guy Santagate. He proposed the pedestrian bridge be named The Santagate Bridge.

Mr. Simonds said under the new ordinance, section 16-110, all proposals in the Historic District should be considered by the Historic District Commission (HDC). Last night the HDC met and enthusiastically supported this proposal.

A motion was made by Mr. Raymond and seconded by Mr. Damren to approve Mr. Simonds' request to name the pedestrian bridge, The Santagate Bridge.

Mike Satzow, Ward 2, said he has been working on the Mill District since the 1970s. He said this is a small tribute for someone who has done so much for the community.

Earnest Montenegro, Ward 1, said he heartily supports naming the pedestrian bridge, The Santagate Bridge. He said Mr. Santagate came to this community with vision.

Andy Lefreniere, Ward 3, echoed the previous sentiments. He said Mr. Santagate is very worthy of this honor. Because of the complexity of the Mill Project, it wouldn't have been successful without Mr. Santagate's work.

Josh Bushueff, Ward 2 resident and Assistant Director of the Claremont MakerSpace, said it is very appropriate to name the bridge after Mr. Santagate. He is floored by the positive growth in the downtown under Mr. Santagate's dedication and leadership.

Kyle Messier, Ward 1, said she is in favor of naming the bridge The Guy Santagate Bridge. She said as City Manager, Mr. Santagate was well known for establishing goals, working the plans and creating partnerships. An example of that is the Mill Project which connects Claremont's past with its future economic growth. Business New Hampshire in December 2016 named two companies in the Mill District, National Field Reps and Red River Company, on its list of 100 fastest growing companies.

Ms. Messier read a letter from Vin and Arlene Hawkins (who weren't able to be here), 592 Redwater Brook Road, saying that they endorse naming the Pedestrian Bridge, The Santagate Bridges. They cited such things as his vision that gave us The Common Man and Red River Computer.

David Messier, Ward 1, said he came back to Claremont in 1987 and he saw the downward spiral of the 1990s. He said Mr. Santagate didn't do the work he did for the glory, he just wanted to do his best for Claremont. Naming the bridge after Mr. Santagate is a fitting way to extend gratitude to him for making Claremont a better place.

Bernie Folta, Ward 3, said he moved to Claremont in 2004 and Mr. Santagate was a significant figure in Claremont. Mr. Folta did not approve of Mr. Santagate's governance. He believes Mr. Santagate deserves an honor, but thinks it would be more appropriate to name the parking garage after Mr. Santagate as that was a key lynch pin in all the other things going on. Mr. Santagate deserves to be honored.

Mr. Temple said naming the bridge after Mr. Santagate is most appropriate. It is significant as it brings one side of the City to the other and it is an open structure...openness. He will vote in the affirmative.

Mr. Pope said Mr. Santagate had put out an RFP for the Mill Project and received one bid to demolish them. If the mills had been demolished, it would have left a brownfield which would have cost millions to clean up. Mr. Santagate moved forward with the Mill Project. He thinks it is appropriate to name bridge after Mr. Santagate because it was a lynch pin for the whole area.

Mr. Simonds read the letter from the Historic District Commission supporting the proposal to name the pedestrian bridge for Guy Santagate.

Roll call vote:

Carolyn Towle - yes

Scott Pope - yes

Keith Raymond - yes

Allen Damren - yes

Abigail Kier - yes

Bruce Temple - yes

Nicholas Koloski - yes

John Simonds - yes

Charlene Lovett - yes

Motion carried 9-0.

Mr. Simonds said to follow through on this, he would like to form a committee to work on the proper signage and placement of the sign. He would like to be on that committee. He would like to see the sign in place by spring.

There was discussion about establishing an ad hoc committee. Mr. Simonds would like it to be a three-person committee. Mr. Simonds, Mr. Pope and Mr. Raymond volunteered to be on the committee. Mr. Pope will report back to the Council on this.

Mr. Simonds will notify Mr. Santagate of the Council's vote.

A motion was made by Mr. Damren and seconded by Mr. Raymond to form an Ad Hoc Committee made up of one Councilor and two community members to coordinate with the Claremont Historic District Commission to design and formulate a plan for signage for The Santagate Bridge.

Voice vote: motion carried 9-0.

Motion to Accept Wooden Flag Display for the Police Department

Chief Chase said that David Coombs, crafted the wood flag. It will be displayed in the Police Department. He asked the Council to accept it.

A motion was made by Mr. Damren and seconded by Mr. Simonds that the Claremont City Council hereby accepts with sincere appreciation a gift of a Wooden Flag with a value of \$200.00 from David Combs.

Voice vote: motion carried 9-0.

Resolution 2018-19 Accept and Expend K-9 Unit Grant – Public Hearing

The City of Claremont has been awarded a grant from the Stanton Foundation (Stanton) for the K9 Unit Establishment in the amount of \$25,000.00 for the start-up and an additional \$18,000.00 for overtime while the officer is in training, for a total amount of \$43,000.00. The City would like to accept the Grant Agreement, as presented, and expend the grant funds for their intended purpose (to have no impact on the tax rate).

Chief Chase said that Captain Lee used to be a K9 handler. This grant is to establish the program. Captain Lee has already been accepted in the Boston K9 training.

When asked about the cost of the project after the grant runs out, Chief Chase didn't know, but he is working with other agencies to be able to establish a budget. If the handler changed jobs, the dog may go with him, depending on certain factors. He expects the program to be operational about the end of May. The dog will be a patrol dog and then will go to drug school. The career span of a dog varies from 7-10 years. One of the cruisers was in an accident earlier this year. The money for it was encumbered and will be used for a K9 vehicle. The life expectancy for a K9 vehicle is about 6-7 years. When the officer goes on vacation, the K9 will go to a kennel. The Police Department will pay for the K9's food and veterinary bills.

Mr. Koloski asked for contributions of needs. He asked for a list of needs to be placed in the packets.

Chief Chase said Hannaford's is willing to buy a ballistics vest for the K9. The K9 will be PR tool. The K9 will also be a partner to the officer. The grant is for a five-year commitment and there has been frank discussions with Captain Lee regarding his commitment to Claremont.

A motion was made by Mr. Damren and seconded by Mr. Simonds to adopt Resolution 2018-19 Accept and Expend K-9 Unit Grant.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing.

Rebecca MacKenzie, Ward 2, asked if narcotics training would fall under this grant. Chief Chase said yes.

Roll call vote:

Carolyn Towle - yes

Scott Pope - yes

Keith Raymond - yes

Allen Damren - yes

Abigail Kier - yes

Bruce Temple - yes

Nicholas Koloski - yes

John Simonds - yes
Charlene Lovett - yes
Motion carried 9-0.

Mayor Lovett asked for quarterly reports in the packet.

Ordinance 559 Establish Maple Avenue School Zones – First Reading

Withdrawn

Approval/Denial of Fire Union Contract

Mr. McNutt said this was discussed in the non-meeting.

A motion was made by Mr. Simonds and seconded by Ms. Towle that the Claremont City Council hereby approves a Collective Bargaining Agreement between the City of Claremont and IAFF, Local 1541 (Fire Union), which calls for the following increases in salary and benefits:

<u>Year</u>	<u>Estimated Increase (Salary & Benefits)</u>
FY 2018	\$19,397.98
FY 2019	<u>\$20,912.13</u>
	\$40,310.11

Said sum represents the additional costs attributable to the increase in salaries and benefits over those of funds appropriated at current staffing levels. The increase for FY 2018 shall be covered in the 2018 approved budget with no additional impact on the tax rate.

The City Council further authorizes the city manager, or his designees, to take such actions as may be necessary to implement this motion.

Ms. Walter said there was a typo in the motion; the Local number should be 1571, not 1541.

Mr. McNutt summarized the agreement. This is a two-year agreement with a 4% wage increase in year one and a 2% increase in year two.

There was a discussion about the dates for the contract and FY 2020 needed to be added.

Mary Walter, Finance Director, said she put in an 8% health insurance increase.

Mr. Simonds amended his motion to add FY 2020 for \$9,218.85 for a total of all three fiscal years of \$49,528.96. Ms. Towle seconded.

The Claremont City Council hereby approves a Collective Bargaining Agreement between the City of Claremont and IAFF, Local 1571 (Fire Union), which calls for the following increases in salary and benefits:

<u>Year</u>	<u>Estimated Increase (Salary & Benefits)</u>
FY 2018	\$19,397.98
FY 2019	\$20,912.13
FY 2020	<u>\$ 9,218.85</u>
	\$49,528.96

Said sum represents the additional costs attributable to the increase in salaries and benefits over those of funds appropriated at current staffing levels. The increase for FY 2018 shall be covered in the 2018 approved budget with no additional impact on the tax rate.

The City Council further authorizes the city manager, or his designees, to take such actions as may be necessary to implement this motion.

Voice vote: motion carried 9-0.

Resolution 2018-18 Establish Energy Advisory Committee – Public Hearing

The New Hampshire Climate Action Plan encourages the adoption of municipal Energy Committees to identify and make recommendations for the adoption of municipal energy use and conservation policies. The City Council finds that creation of a Claremont Energy Advisory Committee is in the City's public interest to encourage a stable energy economy for the fiscal and environmental benefit of the City and its taxpayers. This is to establish the Claremont Energy Advisory Committee (the Energy Committee) to identify opportunities and make recommendations to the City Council for creating and implementing comprehensive, sustainable and regenerative energy policies, and to facilitate educational opportunities, including those related to skill-building for energy and conservation measures, as well as such other initiatives and assignments as may be determined by the City Council from time to time. The Energy Committee shall consist of five (5) regular and two (2) alternate citizen members, who shall be residents of the City, appointed by the City Council for two year terms, and who are recommended to include at least one person with experience in energy issues and efficiencies in either the public or private sector, one person with experience in education or training, one person with engineering background or experience, and one City Council representative. The Energy Committee shall hold meetings and public hearings necessary to carry out its duties, promote communication and collaboration among community organizations and the City, and develop reports and recommendations to the City Council.

Mayor Lovett said at the last meeting that City Planner Mike McCrory had given the Council information about this. The Council has before it a resolution to establish an Energy Committee and an ordinance to establish an Energy Commission. She said there was concern about control of funds. With a committee, any amount above \$500 needs Council approval. She said she talked to NHMA and was told the advantage of a commission is that any monies received can be

allowed to accumulate year after year. She said the makeup of a commission could be as few as three people. The proposed ordinance and resolution cited the energy committee or commission was comprised of five people.

Nancy Merrill, Planning and Development Director, said that both the size for both the committee and the commission are five members. The mission for both is same. The difference is that the advisory committee lasts as long as the Council wants it to last. The ordinance would change the City Code.

There was a discussion by the Council whether to go with a committee or a commission. It was pointed out that the committee could be converted to a commission any time the Council wishes.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2018-18 Establish Energy Advisory Committee.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing.

Rebecca Mackenzie thanked Ms. Merrill and Mr. McCrory for their work on this and she looks forward to being helpful with this program.

Mayor Lovett closed the public hearing.

Voice vote: motion carried 9-0.

Ordinance 560 Establish Energy Commission – First Reading

Withdrawn. Council decided to go with an Energy Committee at this time.

Motion to Approve Ambulance Contract

Mr. Koloski recused himself and left the Council table.

Mayor Lovett read from an 11/30 email from Attorney Jane Taylor to Mr. McNutt regarding modifying the ambulance contract without putting it out to bid. Ms. Taylor said that it could be done.

Mr. Temple said he will support the contract. He said that multi-year contracts can be renewed, but this is amending a multi-year contract and rolling it over. He said the intent of the purchasing policy is that after five years, the intent is to go out for a new RFP/RFQ.

Mayor Lovett pointed out the purchasing policy has not been reviewed in quite some time and the Policy Committee will need to work on it.

Mr. McNutt said in addition to this question, he had asked about going out to bid for other services. Attorney Shawn Tanguay said the City would not be under any obligation, for something as specific as an ambulance contract, if there is little likelihood that there are any other service providers in the area.

Mr. Damren asked to include in the motion, wording to say when the contract expires.

A motion was made by Mr. Damren and seconded by Mr. Simonds to authorize the City Manager or his designee to enter into a multi-year agreement beginning January 1, 2018 and ending December 31, 2020, with Golden Cross Ambulance Service, Inc. for providing ambulance service, including emergency medical care and transport, for the City of Claremont. The agreement contains a termination clause in the event of non-appropriation of sufficient funds for the agreement.

Voice vote: motion carried 8-0 with 1 abstain, Mr. Koloski.

Mr. Koloski returned to the Council table.

Council Rules Update

Mayor Lovett's proposed Addition to Council Rules:

1. TOPIC – Setting of the Agenda

BACKGROUND: Currently, the Council Rules do not outline the process for setting the agenda. The addition of this rule will clarify the process.

Rule: When setting the agenda for a Council meeting, the Mayor will coordinate agenda items with the City Manager. The final authority for determining content of the agenda rests with the Mayor. Once the Mayor has approved the agenda, the Council Clerk will format and post the agenda.

Mayor Lovett said this is being revisited because changes to Council Rules must be presented to the Council in writing at the preceding regular meeting and then voted on at the next meeting. This rule will go in front of the agenda procedures.

A motion was made by Mr. Temple and seconded by Mr. Damren that the Claremont City Council hereby amends and readopts its Council Rules as follows: (2/3 vote required)

Setting the Agenda

When setting the agenda for a Council meeting, the Mayor will coordinate agenda items with the City Manager. The final authority for determining content of the agenda rests with the Mayor. Once the Mayor has approved the agenda, the Council Clerk will format and post the agenda.

Bernie Folta, Ward 3, said this will work if we have a fair-minded mayor, but if not, the council/government needs to be protected. He suggested that any Councilor may place a matter on the Council agenda.

Mr. Simonds has an issue that the position of Mayor has the final authority, he would like to add that the final decision rests with Mayor and City Council

Mayor Lovett said someone has to have the final say. There are multiple ways that any concerns can be addressed.

Mr. Simonds said that as written, he will vote no.

Ms. Kier said that it is a process point as the Mayor runs the meeting.

Mr. Damren said before the agenda is posted, someone has to have final say of what it looks like.

Roll call vote:

Carolyn Towle - yes

Scott Pope - yes

Keith Raymond - yes

Allen Damren - yes

Abigail Kier - yes

Bruce Temple - yes

Nicholas Koloski - yes

John Simonds - no

Charlene Lovett - yes

motion carried 8-1.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Ms. Kier asked if there are any proactive plans for Police Department retention.

Mr. McNutt said wage issues and the schedule will be address through collective bargaining, Officers wanted to be more proactive, i.e. the K9 unit and training sessions for proper car seat installation.

Mayor Lovett asked that the Public Works Director expound on what were the issues at the new Ford location and National Field Reps.

Ms. Towle would like to see future Councils keep tabs on the cost for outside litigation. She would like to see comparatives. Mr. McNutt said that should be in the Finance Report. He will follow-up.

Mr. Pope said the Policy Committee still needs the lead policy. He said the December 21st meeting of the Policy Committee has been moved to January 18, 6 p.m., location to be determined.

Mr. Temple talked about the water rates going up on the next billing cycle. He is concerned about the amount of money taken out of the water enterprise fund each year. He would like to know with the new rates that was passed if we are closing the gap of what we take out of retained earnings.

Mayor Lovett asked for a water and sewer enterprise fund presentation in January.

Mr. Temple said it was important to be aware of the expenses that are coming, i.e. adding a firefighter, approved two contracts, Public Works contract in the near future, and that there should be policies/concepts in place to protect the water/sewer enterprise funds.

There was a discussion about when to swear in the New Council. It was agreed to be January 3, 2018, 6:30 p.m., Council Chambers.

Mr. Koloski asked about the status of letters for new businesses. He also asked about sending cards to donors when donations are received.

Mayor Lovett will bring them to the City Manager's office for Councilor's to stop by and sign.

Mr. Koloski asked for a sign/banner reminding people to vote to be placed in a visible location when it is time to vote.

Mr. Koloski asked about a tour of the facilities for the new Council.

Mr. Koloski asked about a meeting with the School Board. Mayor Lovett said there was supposed to be a joint meeting on the 14th, but they opted to have the City Manager speak on the 6th. She has asked the School Board for a couple dates to meet in January.

Ms. Towle said that Mr. McNutt spoke very well and represented the City well at that meeting.

Mr. Simonds asked that the new Councilors be given more information regarding the position of Sergeant-at-Arms.

Mayor Lovett asked about the resolution of the MacGlaflin land. Mr. McNutt said there is a meeting on the 19th. He'll put the information in his City Manager's Report.

Mayor Lovett asked about the Audit Report. Mr. McNutt said when it is ready, he will give it to the Council.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL REVIEW

At 10:07 p.m. a motion was made by Mr. Damren and seconded by Mr. Pope to go into the Non-Public Session pursuant to RSA 91-A:3,II(a) – Personnel Review and to invite Mr. McNutt into the session.

Roll call vote:

Carolyn Towle - yes

Scott Pope - yes

Keith Raymond - yes

Allen Damren - yes

Abigail Kier - yes

Bruce Temple - yes

Nicholas Koloski - yes

John Simonds - yes

Charlene Lovett - yes

motion carried 9-0.

Councilors discussed their input for the City Manager's evaluation.

A motion was made by Mr. Damren and seconded by Mr. Simonds to exit the Non-Public Session.

Roll call vote:

Carolyn Towle - yes

Scott Pope - yes

Keith Raymond - yes

Allen Damren - yes

Abigail Kier - yes

Bruce Temple - yes

Nicholas Koloski - yes

John Simonds - yes

Charlene Lovett - yes

motion carried 9-0.

The public session reconvened at 10:25 p.m.

ADJOURNMENT

At 10:27 p.m., a motion was made by Mr. Damren and seconded by Mr. Temple to adjourn.

Voice vote: motion carried 9-0.

Non-public session minutes recorded by Abigail Kier.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council